

GENERAL TERMS AND CONDITIONS

The terms and conditions set forth below are also available at <https://sharp.co.za/ssl/tc.pdf>. These terms and conditions are subject to change without notice. By signing this document, the Buyer acknowledges that they have reviewed the terms and conditions on the website, understand them, and agree to be bound by the current version, as amended from time to time. The Buyer is responsible for periodically checking the website for updates. In the event of any discrepancy between the terms and conditions provided below (if any) and those posted on the website, the website version shall control. The Seller disclaims all liability for any errors or omissions in the content of the website.

1 INTERPRETATION

1.1 In these Terms and Conditions, unless the context indicates a contrary intention, the following words and expressions bear the meanings assigned to them, and cognate expressions bear corresponding meanings:

1.1.1 "**Business Day**" means any day other than a Saturday, Sunday, or gazetted national public holiday in the Republic of South Africa;

1.1.2 "**Business Hours**" means the hours between 08h30 and 17h00 on any Business Day;

1.1.3 "**Buyer**" means a person to whom the Seller is to supply goods according to a Contract;

1.1.4 "**Collection Date**" means the collection date(s) set out in each Purchase Order or such other date as may be agreed by the parties in writing;

1.1.5 "**Collection Notice**" means the written notice which is issued and signed in terms of clause 9.2 in respect of the collection of Merchandise;

1.1.6 "**Contract**" means a contract for the sale of goods by the Seller to a Buyer which incorporates these Terms and Conditions;

1.1.7 "**Delivery Address**" means the address at which the Seller must deliver the applicable Merchandise (as set out in the applicable Purchase Order);

1.1.8 "**Delivery Date**" means the delivery date(s) set out in each Purchase Order or such other date as may be agreed by the parties in writing;

1.1.9 "**Delivery Notice**" means the written notice which is issued and signed in terms of clause 9.5 in respect of the delivery of Merchandise;

1.1.10 "**Effective Date**" means the date of signature of the Contract by the party last signing the Contract;

1.1.11 "**Merchandise**" means the merchandise which the Seller supplies according to a Contract;

1.1.12 "**Seller**" means Sharp Middle East (Incorporated in the United Arab Emirates), Registration Number 2010/005284/10, whose registered office is at Building 6, Greenstone Hill Office Park, 24 Emerald Boulevard, Greenstone, Lethabong, 1609, South Africa;

1.1.13 "**Staff**" means any employee, independent contractor, agent, consultant, sub-contractor, or other representatives of either party; and

1.1.14 "**Terms and Conditions**" means the standard Contract terms and conditions of the Seller contained in this document.

2 IMPORTANT CONSUMER NOTICE

2.1 These Terms and Conditions govern the Seller's Contract and the subsequent ordering, sale, delivery, and return of any Merchandise.

2.2 These Terms and Conditions apply to users who are consumers for purposes of the Consumer Protection Act, No 68 of 2008 ("**CPA**").

2.3 These Terms and Conditions contain provisions that appear in bold, which:

2.3.1 may limit the risk or liability of the Seller; and/or

2.3.2 may create risk or liability for the Buyer; and/or

2.3.3 may compel the Buyer to indemnify the Seller; and/or

2.3.4 serves as an acknowledgment by the Buyer of a fact.

2.4 The Buyer's attention should be drawn to these Terms and Conditions as they are essential and should be carefully noted.

2.5 If there is any provision in these Terms and Conditions that the Buyer does not understand, it is the Buyer's responsibility to request the Seller to explain the same before accepting these Terms and Conditions.

2.6 Nothing in these Terms and Conditions is intended or must be understood to unlawfully restrict, limit, or avoid any right or obligation, as the case may be, created for the Buyer or the Seller in terms of the CPA.

3 QUOTATIONS AND ACCEPTANCE

3.1 A quotation by the Seller does not constitute a binding offer of sale of products to the BUYER. The Seller reserves the right to withdraw or revise a quotation at any time before the Seller accepts the Buyer's order.

3.2 The Seller's acceptance of the Buyer's orders (including verbal orders) is effective upon authorization of the Buyer's purchase order, provided the purchase order is signed by an authorized representative of the Buyer. No separate sales contract from the Seller is required for order acceptance.

4 PRICE

4.1 Unless otherwise agreed in a quotation, all prices shall be quoted in South African Rand ("**ZAR**"). If an alternative currency is agreed between the Seller and the Buyer, any forex exchange required for the money specified on the face hereof shall be for the Buyer's account and risk.

4.2 All prices stated on the face hereof ("**Payment Amount**") in the currency other than ZAR ("**Currency of Payment**") are based on the exchange rate of ZAR to the Currency of Payment designated on the face hereof (hereinafter called "**Original Rate**").

4.3 If on the date of receipt of any Payment Amount at foreign exchange banks, the prevailing exchange rate of ZAR to the Currency of Payment varies from the Original Rate, then the Payment Amount shall be adjusted to provide the Seller with the same amount of ZAR as would have been provided if exchanged at the Original Rate.

4.4 If in the Seller's judgment there shall have occurred a material change in i) the direct or indirect cost of the prices of the Merchandise unshipped, including without limitation costs for raw and subsidiary materials, machinery and equipment, labor, freight, gas, electricity, and oil, or ii) the exchange rate of ZAR to the Currency of Payment between the time of execution of the Contract and the time of actual shipment of the Merchandise, the Seller shall have the right to negotiate with the Buyer for a revision of the prices of such Merchandise unshipped at any time before the actual shipment date. Suppose the parties fail to reach an agreement concerning the revision of the prices by such a shipment date. In that case, the Seller shall have the right to cancel the Contract without incurring any liability applicable to the Merchandise unshipped.

4.5 Subject to clause 4.1, if: (i) the Buyer is an entity incorporated in a country outside of South Africa, and (ii) the sale of the Merchandise constitutes a cross-border sale, the parties agree that all prices shall be quoted in United States dollars ("**USD**") and all references in this clause 4 to "ZAR" shall be deemed to be "USD" wherever "ZAR" appears.

5 INSPECTION

An inspection performed under the laws of South Africa and/or the Seller's inspection, unless otherwise agreed in writing, shall be final and conclusive in respect of the quality and condition of the Merchandise.

6 SHIPMENT

6.1 Unless otherwise agreed in writing, the shipment shall be effected in one shipment, subject to the carrier's space being available.

6.2 The Seller shall not be responsible for late shipment due to the delay or cancellation of such carrier.

6.3 The date of the bill of lading or a similar document(s) shall be deemed conclusive evidence of the date of such shipment. If the Merchandise for one order is shipped in more than one lot, each lot shall be considered a separate sale.

- 6.4 If the Buyer refuses or fails to take delivery of Merchandise tendered under the Contract or fails to take any action necessary on its part for delivery and/or shipment of the Merchandise, the Seller is entitled to terminate the Contract with immediate effect: to dispose of the Merchandise as the Seller may determine, and to recover from the Buyer any loss and additional costs incurred as a result of such refusal or failure (including, without limitation, storage costs from the due date of delivery).
- 6.5 The Seller is deemed to have fulfilled its contractual obligations regarding any delivery even though the quantity may be more or less than the quantity specified in the Contract. The Buyer shall pay for the actual amount delivered.
- 6.6 It shall always be the Buyer's responsibility to ensure that it has examined all Merchandise at the time of delivery to satisfy itself as to the quantity of the Merchandise delivered.
- 6.7 Where the parties agree that the Buyer shall be responsible for the shipment of the Merchandise, all risks in the Merchandise shall pass to the Buyer from the load of the Merchandise, and the Buyer shall be responsible for all costs and expenses associated with the shipment of the Merchandise.

7 PAYMENT

- 7.1 The Seller shall issue an invoice to the Buyer in respect of the Merchandise upon the receipt of a Purchase Order as contemplated in clause **Error! Reference source not found..**
- 7.2 The payment terms in respect of the Merchandise shall be as specified on the Purchase Order. Seller offers three payment options detailed in Clause 8 below: advance payment, open account terms, and the split payment financing option. The Seller retains full discretion in approving, modifying, or withdrawing any extended payment terms based on its assessment of the Buyer's financial risk and payment history. The Seller may request additional financial documentation from the Buyer before granting any extended payment terms.
- 7.3 All terms of payment offered to the Buyer are subject to the Seller accepting the credit rating of the Buyer, as determined from the Seller's sources. If the Seller does not accept the Buyer's credit rating, the Seller reserves the right to change the terms of payment or cancel the Contract at any time before the dispatch of the Merchandise if an agreement cannot be reached.
- a. The Buyer may apply for extended payment terms on a per-invoice basis, subject to approval by the Seller and adherence to the following interest rates:
- S45D - 0.5% interest
 - S75D - 1% interest
 - S105D - 1.5% interest
- Interest is calculated separately for each invoice where extended payment terms are approved.
 - Interest is charged when both parties have agreed to the extended payment terms and must be settled along with the invoice amount.
 - Failure to comply with the payment terms may result in the suspension of the credit facility
- 7.4 If the terms of payment providers for the opening of a line of credit or the provision of security by way of letters of credit or bank guarantee, or any other security as may be agreed between the parties, then such documents must comply with the Seller's standard wording for the relevant document, from time to time.
- 7.5 Without limiting the generality of the preceding, the Buyer shall pay to the Seller interest at the rate of eighteen per cent (18%) per annum on the amount of the price of the Merchandise from the due date for payment to the date of actual payment, both dates inclusive, plus storage charge on relevant Merchandise incurred by the Seller therefrom.
- 7.6 The Buyer shall countersign the Statement of Accounts or Balance Confirmation as provided by the Seller from time to time, to acknowledge and confirm the accuracy of transaction records and outstanding balances. Failure by the Buyer to respond or object in writing within seven (7) days of receipt shall be deemed an acknowledgement of the account
- 7.7 Seller shall not proceed with any shipments if the Buyer has overdue payments. In the event that a shipment occurs despite such overdue payments, it shall be deemed an exceptional measure taken at Seller's sole discretion. Such occurrence shall not constitute a waiver of Seller's rights, nor shall it be interpreted as a modification of the agreed payment terms or the establishment of any precedent.

8 PAYMENT OPTIONS

8.1 SPLIT PAYMENT FINANCING OPTION

This payment option is available to select customers upon satisfaction of certain conditions by S and subject to the Seller's sole discretion. Under this option, payment is effected through a financing arrangement wherein the End User enters into a separate financing agreement with a third-party finance provider. Pursuant to this option, Seller shall provide the Products in accordance with the terms and conditions of this Agreement and/or the applicable sales contract/proforma invoice. Upon successful installation of the Products at the End User's premises, the finance provider shall remit the agreed-upon payment directly to the Seller. This financing option shall not modify Seller's standard operating procedures, except that payment shall be received directly from the finance provider rather than the Buyer.

If payment is not received from the finance provider, the Seller reserves the right to recover the outstanding amount directly from the Buyer. The Buyer must complete the process within one (1) month after being notified by the Seller regarding the outstanding amount to be recovered from the Buyer. The payment terms shall remain consistent with those of the Open Account Arrangement.

Buyer's payment obligation shall remain absolute and unaffected by any failure, delay, or dispute involving the finance provider.

8.2 Open Account Payment Terms

Open account payment terms are offered to Buyers who have an established open account facility. This arrangement involves the shipment of goods to the customer before payment is due. These terms typically allow for credit periods ranging from 30 to 90 days, after which the customer is expected to settle the invoice in full.

8.3 Advance Payment Terms

Advance payment terms are offered to Buyers who opt to pay in advance prior to the shipment of products. This arrangement requires the customer to make a full or partial payment before the goods are dispatched in accordance with the terms stated in the Seller's Sales Contract.

9 COLLECTION, DELIVERY, OWNERSHIP, AND TITLE

- 9.1 The Seller shall make the Merchandise available for collection at the Seller's warehouse (or such other place as the Seller may designate in writing) in the quantities and on the Collection Date as specified in the applicable Purchase Order confirmed by the Customer's authorised signatory. The Merchandise shall be collected by the buyer's authorized representative as specified on the Purchase Order.
- 9.2 On collecting the Merchandise at the Seller's warehouse on the Collection Date, the Seller shall obtain a signature of a Collection Notice from the Buyer's authorized representative who collects the applicable Merchandise.
- 9.3 If applicable, the Seller shall make delivery of the Merchandise in the quantities and on the Delivery Date, as specified in the relevant Purchase Order.
- 9.4 The Seller shall deliver the Merchandise to the Delivery Address as specified in the applicable Purchase Order or such other address as may be specified by the Buyer in writing.
- 9.5 On delivery of the Merchandise to the applicable Delivery Address, the Seller shall obtain a signature of a Delivery Notice from the Buyer's representative who accepts delivery of the relevant Merchandise.
- 9.6 The Buyer shall be responsible for ensuring that its authorized representative specified on the Purchase Order is available to collect or accept delivery of the Merchandise on the Collection Date or Delivery Date (as the case may be). The Seller may, at its election, only deliver or hand over the Merchandise on the Collection Date or Delivery Date if the Buyer's authorized representative is available to collect or accept delivery of the Merchandise. The Seller may designate a new date as the Collection or Delivery Date ("**Designated Date**"). The Buyer shall be responsible for all costs (including any transportation costs) concerning the collection or delivery of the Merchandise on the Designated Date.
- 9.7 The Buyer may designate an additional authorized representative to collect or accept delivery of the Merchandise on the Collection Date or the Delivery Date (as the case may be) by giving notice to the Seller not less than 5 Business Days before the Collection Date or the Delivery Date.
- 9.8 Unless otherwise agreed between the parties, ownership of, and all risk and benefit in and to, the Merchandise shall pass to the Buyer upon the collection of the Merchandise on the Collection Date by the Buyer or the delivery of the

	Merchandise to the Buyer by the Seller on the Delivery Date (as the case may be).	13.5	The Buyer further agrees not to use any modified, altered, counterfeit, or unauthorized spare parts or components to service, repair, or replace any part of the SHARP products supplied by SSA. Any use of such modified or non-genuine parts, including but not limited to parts independently sourced and altered by the Buyer, shall constitute a material breach of these terms and conditions.
10	INSURANCE		
10.1	If the Contract is made on trade terms that require the Seller to arrange insurance, the insurance shall be affected for the amount of the Seller's shipping invoice plus ten per cent (10%) or such other percentage as may be determined by the Seller or required by applicable laws and regulations. Any additional insurance required by the Buyer shall be at their own expense.	13.6	In the event of such a breach, the Seller reserves the right to pursue any and all available legal or equitable remedies, including but not limited to the recovery of financial losses or damages suffered as a result of the Buyer's actions, termination of this Agreement, and/or suspension or revocation of the Buyer's authorization status.
10.2	The Seller may insure against war and strikes, riots, and civil commotion (S.R.C.C.) risks at the Buyer's expense if necessary. Unless the Contract is made on trade terms which require the Seller to arrange the insurance, the payment terms or line of credit provided shall provide that insurance for the Merchandise acquired by the Buyer in terms of the Contract will be covered by the Buyer.	13.7	If the Buyer becomes aware of facts or defects in the Merchandise, the Buyer shall notify the Seller immediately, irrespective of whether the presence or defect occurred during or after the end of the Warranty Period, and ensure that its Staff or service partners act accordingly.
11	PATENTS AND TRADEMARKS	13.8	As part of its provision of the after-sales services, the Buyer shall ensure that all its Staff are suitably and appropriately qualified, trained, experienced, and available to render the after-sales services in terms of these Terms and Conditions. The Seller shall, from time to time, provide training to the Buyer's representatives concerning the functionality and directions of use of the Merchandise. The Buyer shall, in turn, conduct regular training sessions for its Staff, rendering the after-sales services and ensure that its Staff is aware of the functionality of the Merchandise sold to End-users and instructions, directions, and any procedures and codes as may be agreed between the Parties.
11.1	The Buyer acknowledges that all patents, utility model rights, trademarks, designs, copyrights, or any other intellectual property rights (including any rights which Sharp Corporation, Japan (" Sharp Corp ") has as a licensee, whether exclusive or non-exclusive of such patents, utility model rights, trademarks, designs, copyrights or any other intellectual property rights) in or in connection with the Merchandise are the sole property of Sharp Corp and the Buyer shall not in any manner whatsoever by legal action or otherwise dispute or challenge the validity of same.	14	EXCEPTIONS
11.2	The Buyer shall have no right to apply in any name for registration of trademarks, trade names, or other marks, symbols, or emblems of Sharp Corp as are or will be owned, controlled, or used by Sharp Corp in any country.		The Seller shall not be liable for any delay in shipment or delivery, non-delivery, or destruction or deterioration, of any part of the Merchandise, or for any other default in performance of the Contract which arises from any lockout, slowdown, strike, labour trouble or other industrial disturbance, inevitable accident, fire, explosion, transportation difficulty, materials or labour storage, or substantial increase, in the judgement of the Seller, in the costs of the Merchandise, the Seller's suppliers or the Seller's supplier's subcontractors suspension or inability of or delay in production or shipment of the Merchandise or any component parts thereof, or from any cause beyond the control of the Seller including but not limited to war, breaking-off of diplomatic relations, blockade, embargo, mobilisations, governmental administrative or public direction or guidance or order including any reasonably anticipated law or guidance or order thereof, legal restriction imposed in South Africa including any reasonably expected regulation thereof, riots, civil commotions, warlike conditions, prolonged failure or shortage of electric power, gas or oil, epidemic, earthquake, flood, wind, flood, cyclones, or other act of God, and in such case the Buyer is bound to accept the delayed shipment or delivery of the Merchandise, or to accept the cancellation of all or any part of the Contract as the case may be.
11.3	Unless otherwise agreed in writing, neither Sharp Corp nor the Seller warrants that the import, sale, or use of the Merchandise will not infringe patents, utility model rights, trademarks, designs, copyrights, or any other intellectual property rights of any third party, and neither Sharp Corp nor the Seller shall be in no way responsible or under any liability whatsoever to the Buyer in respect of any such claim of infringement; provided, however, that if the Seller deems it necessary, the Seller will, at the Buyer's costs, render the Buyer all possible assistance in connection with any matter about a such claim of infringement.	15	DATA PROTECTION
12	RETURNS	15.1	The Buyer acknowledges that the Seller may be required to process the Buyer's personal information (being information which personally identifies the Buyer and the Buyer's data subjects) in connection with and to fulfill its obligations and perform in terms of the Contract, complying with applicable laws; according to the Seller's business interests or as otherwise disclosed to the Buyer. The Seller shall comply with data protection legislation that may apply to it from time to time, including the Protection of Personal Information Act, No. 4 of 2013.
	No Merchandise shall be returned to the Seller, whether for inspection, repair, replacement, or any other reason, without prior written approval from the Seller. Merchandise must be returned in new or like-new condition with complete identification in accordance with the Seller's instructions, or the shipment may not be accepted. All returns must be sent to the Seller at the Seller's designated location unless otherwise instructed by the Seller in writing.	15.2	The Buyer warrants that all the personal information it provides to the Seller is true, accurate, and up-to-date and undertakes to report any changes to its data timeously. The Buyer warrants that where it discloses the personal information of another person to the Seller, it has obtained that person's consent to do so or is otherwise authorized to make such disclosure to the Seller by data protection legislation.
13	WARRANTY PERIOD AND AFTER-SALES SERVICE	16	LIMITATION OF LIABILITY
13.1	The Merchandise shall comply with the specifications supplied with the Merchandise (" Documentation ").	16.1	The Seller cannot be held liable for any inaccurate information and/or any incorrect prices contained in the Contract, save where such liability arises from the gross negligence or wilful misconduct of the Seller, its employees, agents, or authorized representatives.
13.2	The warranty in respect of the Merchandise shall be as and for the period specified on the Documentation or as may be agreed between the parties in writing (" Warranty Period ").	16.2	The Seller shall not be liable for any direct, indirect, incidental, special, or consequential loss or damages that might arise from the Buyer's use of, or reliance upon, the Merchandise.
13.3	If the Buyer sells the Merchandise to its customers (" End-users ") during the Warranty Period or any period after that, the Buyer shall provide after-sales services to the End-users. Unless otherwise agreed between the parties in writing, the performance of the after-sales services for all Merchandise sold to end users shall be carried out solely by the Buyer or the Seller or by a third party appointed by the Seller. The Buyer shall inform the End-users of the after-sales services upon the conclusion of each sale of Merchandise.	16.3	Notwithstanding any provision to the contrary in these Terms and Conditions, the Seller's maximum aggregate liability to the Buyer for all and any claims shall be limited to and shall at no time exceed the purchase price of the Merchandise paid by the Buyer to the Seller.
13.4	The Buyer shall source all consumables, spare parts, and replacement parts for SHARP products exclusively from the Seller or any supplier designated by the Seller. However, where a required item is unavailable or subject to an excessive lead time, SSA may direct the Dealer in writing (email sufficient) to procure the specific item from a Seller-designated Authorised Source (including another SHARP subsidiary, affiliate, distributor, or dealer). If the Seller does not respond within three (3) business days after written notice of unavailability, the Buyer may procure the item from an Authorised Source appearing on the Seller's then-current list, subject to prior notice to Seller and confirmation that the item is a new, genuine SHARP part. Procurement from any non-authorised party is prohibited. The Buyer shall maintain traceability records for twelve (12) months. The Seller will periodically communicate Parts availability and maintain the Authorised Source list. Use of genuine parts in accordance with this Clause will not affect applicable warranties.		

16.4	The Buyer hereby indemnifies the Seller against any loss, claim, or damage, including any claims or actions for bodily injury which may be suffered by the Buyer or any third party arising in any way from:	20	BREACH
16.4.1	the misuse of the Merchandise or the failure to adhere to the instructions set out in the Documentation in respect of the installation, maintenance, and handling of the Merchandise or any unauthorized modification to any part of the Merchandise; and/or	20.1	Without detracting from the rights of the Seller in terms of the Contract, if the Buyer commits any breach of the Contract and fails to remedy such breach within 5 Business Days (" Notice Period ") of written notice requiring the breach to be fixed, then the Seller giving the notice will be entitled, at its option –
16.4.2	the use of any replacement parts not obtained from the Seller by clause Error! Reference source not found. ; and/or	20.1.1	to claim immediate, specific performance of all or any of the Buyer's obligations under the Contract, with or without claiming damages, whether or not such responsibility has fallen due for performance and to require the Buyer to provide security to the satisfaction of the Seller for the Buyer's obligations; or
16.4.3	any negligent act or omission of the Buyer, its employees, agents, officers, or representatives.	20.1.2	to cancel the Contract, with or without claiming damages, in which case written notice of the cancellation shall be given to the Buyer, and the cancellation shall take effect on the giving of the information.
17	CLAIM	20.2	The parties agree that any costs awarded will be recoverable on an attorney-and-own-client scale unless the Court determines that such scale shall not apply. In this event, the costs will be recoverable by the High Court tariff, determined on an attorney-and-client scale.
17.1	The Buyer's sole and exclusive remedy for damages arising from defective Merchandise supplied by the Seller (including, but not limited to, lack of merchantability and unfitness for a particular purpose), whether contractual, delictual or statutory, including, but not limited to, damages arising from the mistake in design and engineering, the faulty quality of the Merchandise, the defects in materials or packaging of the Merchandise or the negligence of failure in finding defective Merchandise in the course of inspection as provided:	20.3	The Seller's remedies in this clause 20 are without prejudice to any other remedies to which the Seller may be entitled in law.
17.1.1	in terms of clause seven hereof shall be limited to the supply of the replacement parts for the parts of the Merchandise found to be defective and the rendition of such technical assistance or advice to the Buyer in repairing the defective Merchandise as may be decided by the Seller on a case-by-case basis; and	21	CERTIFICATE OF INDEBTEDNESS
17.1.2	the Buyer's sole and exclusive remedy for damages arising from a shortage in the quantity of the Merchandise or delivery of Merchandise being different from the Merchandise agreed in terms of the Contract shall be limited to the supply of the amount in shortage or replacement of the various Merchandise with the Merchandise agreed in terms of the Contract, respectively; and		A certificate signed by any director or manager (whose appointment, authority, or qualification need not be proved) for the time being of the Seller shall save in the event of manifest error or unless confirmed otherwise by the Buyer, be –
17.1.3	the Seller shall in no circumstances be liable for any indirect, incidental, special, or consequential loss or damages suffered by the Buyer due to the defective Merchandise, shortage in quantity, or delivery of different Merchandise to the Buyer inconsistent with the terms of the Contract.	21.1	<i>prima facie</i> evidence of any outstanding amount under this Contract; and
17.2	Any claim by the Buyer to the Seller, whether contractual, delictual, or statutory, arising in connection with the Contract shall be made in writing within one (1) month after the arrival of the Merchandise at the destination specified in the bill of lading. Such claim shall be accompanied by a complete description of the claim, including the alleged shortage in the quantity or defect of the Merchandise or details of any other breach by the Seller of the Contract, and if required by the Seller, a survey report issued by leading and first-class authorized surveyor(s), within two (2) weeks after such notification. If the Buyer fails to notify the Seller of such a claim and/or to forward full details to the Seller within the period specified above, the Buyer shall be deemed to have waived their right to assert any claim. The Buyer's claim of whatever nature shall not be entertained before the relative payment is wholly made or the draft is duly honored.	21.2	valid, together with herewith, for any purpose and as a liquid document (alternatively as proof of a liquidated amount) in any court of competent jurisdiction to obtain a provisional sentence, summary judgment, or any other judgment against the Buyer,
17.3	Under clause 18.2 above, the Merchandise shall be retained intact by the Buyer for inspection by such authorized surveyor(s), the Seller's representative, or both. It must not be used or resold until such an assessment has been completed.		and the Buyer acknowledges its indebtedness in respect of any amount so certified.
18	CANCELLATION	22	DISPUTE RESOLUTION
	Suppose the Buyer fails to comply with these Terms and Conditions and/or the Contract, or in the event of bankruptcy or insolvency of the Buyer, dissolution, appointment of receiver or trustee, discontinuance of business, merger, reorganization of, or any other modification of the Buyer or non-payment for any shipment, the Seller, without any prior written notice to the Buyer, shall have the right to cancel the Contract and/or any other agreement. In that case, the Seller may agree with the Buyer to postpone the shipment or to stop the Merchandise in transit and/or to demand immediate payment of any amounts due to the Seller, and the Buyer is bound to reimburse the Seller for any loss or damage sustained therefrom.	22.1	If the Buyer's domicile is in South Africa, the following shall be applicable:
19	CHANGE	22.1.1	in the event of there being any dispute or difference between the parties arising out of the Contract (including but not limited to any dispute or difference as to the validity or otherwise of the Contract, or as to the enforceability of the Contract), the said dispute or difference shall on written demand by either party be submitted to arbitration in Johannesburg by the Arbitration Foundation of Southern Africa (" AFSA ") rules, which arbitration shall be administered by AFSA.
	Any change or modification in the Merchandise requested by the Buyer shall be effected only if agreed upon by the Seller in writing on condition that the Seller may accordingly change the price and/or other conditions of the Contract. The Seller reserves the right to make, in its sole discretion, any change in the specification of the Merchandise which does not seriously affect the quality, performance, or price of the Merchandise.	22.1.2	Should AFSA, as an institution, not be operating at that time or not be accepting requests for arbitration for any reason, or should AFSA refuse to accept the particular request for arbitration for whatever reason, the arbitration shall be conducted under the AFSA rules for commercial arbitration (as last applied by AFSA) before an arbitrator appointed by agreement between the parties to the dispute or failing agreement within 10 Business Days of the demand for arbitration. Any party to the dispute shall be entitled to call upon the chairperson of the Johannesburg Bar Council to nominate the arbitrator, provided that the designated person shall be an advocate of not less than ten years' standing as such. The nominated person shall be the duly appointed arbitrator regarding the dispute if attorneys of the parties to the dispute fail to agree on any matter relating to the administration of the arbitration. In that case, the matter shall be referred to and decided by the arbitrator, whose decision shall be final and binding on the parties to the dispute.
		22.1.3	Any party to the arbitration may appeal the decision of the arbitrator or arbitrators in terms of the AFSA rules for commercial arbitration.
		22.1.4	Nothing herein contained shall be deemed to prevent or prohibit a party to the arbitration from applying to the appropriate court for urgent relief or judgment concerning a liquidated claim.

22.1.5	Any arbitration in terms of this clause 22.1 (including any appeal proceedings) shall be conducted in camera, and the parties shall treat as confidential details of the dispute submitted to arbitration, the conduct of the arbitration proceedings, and the outcome of the arbitration.	23.2	Subject to clause 23, the parties hereby consent and submit to the non-exclusive jurisdiction of the High Court of South Africa, Gauteng Local Division (Johannesburg), in any dispute arising from or in connection with the Contract and these Terms and Conditions.
22.1.6	This clause 22.1 will continue binding on the parties, notwithstanding any termination or cancellation of the Contract.	24	ASSIGNMENT
22.1.7	The parties declare that they intend that this clause 22.1 will regulate how they resolve any dispute or difference regarding the validity or otherwise of the Contract. However, one of the parties may dispute the validity or enforceability of the Contract.		The Buyer may not cede, delegate, assign, transfer, or purport to cede, delegate, assign or transfer any of its rights or obligations under a Contract without the Seller's prior written consent.
22.1.8	The parties agree that the written demand by a party to the dispute in terms of clause 22.1.1 that the dispute or difference be submitted to arbitration is to be deemed to be a legal process to interrupt extinctive prescription in terms of the Prescription Act, 1969."	25	SEVERABILITY
22.2	If the Buyer's domicile is not in South Africa, the following shall be applicable:		All provisions and the various clauses of the Contract and/or these Terms and Conditions are severable, notwithstanding how they have been grouped or linked grammatically. Any provision or clause of the Contract and/or these Terms and Conditions which is or becomes unenforceable in any jurisdiction, whether due to voidness, invalidity, illegality, unlawfulness, or for any other reason whatever, shall, in such jurisdiction only and only to the extent that it is so unenforceable, be treated as <i>pro non scripto</i> , and the remaining provisions and clauses of the Contract or these Terms and Conditions (as the case may be) shall remain of full force and effect. The parties declare that they intend that the Contract and/or these Terms and Conditions would be executed without such unenforceable provision if they were aware of such unenforceability at the time of execution.
22.2.1	all disputes, controversies, or differences arising out of or concerning the Contract, or any breach or alleged breach thereof, shall, unless otherwise settled by the parties, be settled by arbitration under the rules of AFSA, which arbitration shall be administered by AFSA. Any award made in such arbitration shall be final and binding on the parties and may be enforced in any court having jurisdiction thereof. The tribunal shall consist of one arbitrator to be agreed upon by the parties or, failing such agreement, shall be appointed under the rules applicable to the tribunal. The place of arbitration shall be Johannesburg, South Africa, and the AFSA rules shall apply to the same. The language of the arbitration shall be English, and	26	WAIVER
22.2.2	notwithstanding clause 22.2 hereof, if any award rendered by the arbitrator(s) should not be enforced without any review of the facts found by the arbitrator(s), his or their interpretation of the Contract and/or these Terms and Conditions or his or their application or performance of the substantive law of the Republic of South Africa in the country where the substantial part of the assets or properties of either party exists, the other party may institute legal action at any court having competent jurisdiction.		No waiver, suspension, or postponement by either the Seller or the Buyer of any right arising out of or in connection with the Contract shall be of any force or effect unless in writing and signed by such party. Any waiver, suspension, or postponement will be effective only in the specific instance and for the given purpose. Failure or delay on the part of either Party in exercising any right, power, or privilege hereunder will not constitute or be deemed to be a waiver thereof, nor will any single or partial exercise of any right, power, or license preclude any other or further exercise thereof or the exercise of any other right, power or privilege.
22.2.3	Notwithstanding the above, the Seller shall have the right to enforce any arbitration award or court judgment rendered under this Agreement in any jurisdiction where the Dealer holds assets, and the Dealer hereby irrevocably submits to such enforcement proceedings.	27	NOTICES
23	APPLICABLE LAWS AND JURISDICTION	27.1	All notices given in terms of or in connection with the Contract shall be delivered by hand, sent by email, or couriered to the party due to receive the notice at its last known business address.
23.1	The Contract will, in all respects, be governed by and construed under the laws of the Republic of South Africa.	27.2	All notices to be given in terms of the Contract will be provided in writing and will, if delivered by hand during Business Hours at the address referred to in clause 27.1, be presumed to have been received on the delivery date. Any notice given after Business Hours or on a day that is not a Business Day will be presumed to have been received on the following Business Day;
		27.2.1	if sent by courier, two days after collection by the courier company; and
		27.2.2	if sent by email during Business Hours, it is presumed to have been received on the date of successful transmission of the email. Any email sent after Business Hours or on a day not a Business Day will be presumed to have been received on the following Business Day.